

The Claremont City Council held a meeting on Wednesday, August 11, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

Mayor Lovett said that 10 D. Property Maintenance Code Discussion was being removed as the Code Enforcement Officer was not available.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to accept the minutes of the July 28, 2021, City Council meeting, as amended.

Councilor Stone said on page 12 that it should be “juris standard,” not juror. Also, Councilor Stone said he wanted to clarify in the minutes that he has no financial interest in the Arrowhead Motors LLC or the abutting property on Princeton Street which abuts Councilor Koloski’s personal residence.

Mayor Lovett said on page 1 under Agenda Changes, “Council agreed to have a discussion with no public comment.” was a little abrupt and ask that it state “Council agreed to have a short discussion on the path forward with no public comment at this time.”

Roll call vote:
O’Hearne - abstain

Girard - yes
Demars - abstain
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 7-0, 2 abstain.

MAYOR'S NOTES

- Mobile food pantry will be at Runnings August 17, 12 p.m. to 2 p.m., to distribute food from the NH Food Bank
- Back to School Festival Saturday, August 28, 10 a.m. to 12 p.m., Barnes Park
- US Senator Shaheen tentatively scheduled to be in the Claremont area next week, date to be determined
- Congresswoman Kuster tentatively scheduled to be in Claremont August 24 (visit Claremont Amtrak stop and talk about the return of passenger rail service)
- A year ago tomorrow, the City honored the 70th anniversary of the death of Ronald McKenzie, who was awarded the bronze star with valor (City planted a tree and Claremont Democrats donated a tree for the oval)

CITY MANAGER'S REPORT

- **National Night Out** – On Tuesday, August 3, 2021, the Claremont Police Department hosted their first National Night Out. This was a great event that was well attended and was enjoyed by many children and adults alike. National Night Out is a national campaign meant to build communities and the community's relationship with their police departments. He thanked Deputy Chief Mark Grasso who brought up the idea to host this event. He thanked Sergeant Trevor Dickerman who took on the extra workload to organize this event. Sergeant Dickerman partnered with the Claremont Parks and Recreation Department to help make this event a reality. As with other events, it took many community partners to make this event a success, and he thanked everyone who volunteered their time and resources to support this event.
- **Arrowhead Mountain Bike Race Update** – Excitement is building around the Eastern States Cup Enduro race scheduled to take place at Arrowhead August 21st and 22nd. Volunteers led by Rob Walker have been busy updating and expanding the trail network at Arrowhead. To date, there are 310 participants registered for this race with 20 spots on hold for sponsored and pro riders. The trails are getting more and more use as word is starting to spread in the mountain bike world about what is happening in Claremont.

- **Special Olympics** - Claremont will be the host site for the regional meet for Special Olympics, with track and field events taking place at Monadnock Park on September 18, 2021 and swimming events taking place at the Claremont Savings Bank Community Center later in October. More information will be released soon. For volunteer information, please contact Parks and Recreation Director, Mark Brislin.
- **Sullivan County Transport Marketing** – During the annual report by Southwest Community Services about Sullivan County Transportation Services, there was a conversation about marketing using the new bus that will be commuting between Claremont and Lebanon. Through a partnership between the City of Claremont, the Greater Claremont Chamber of Commerce, and the Ink Factory, Claremont will be represented with a full wrap on the bus that is covering this route.

He thanked Rebecca Vinduska for her work on this. There will be a mountain bike picture on one side of the bus and a picture of the mills on the other side.

Claremont Savings Bank Community Center (CSBCC) and the Library are cooling stations.

Fog sealing will begin Monday.

- **Blight Update** – City Staff continues to work on the City Council Goals to address blight. With the addition of Leigh Hays as the City's Deputy Building Inspector & Health Officer, code enforcement efforts have been increasing. Leigh is still in the process of training and earning the proper certifications, but he has been able to help with many issues relating to blight.

NICE – The NICE (Neighborhood Improvement Through Code Enforcement) Committee has been continuing to work together to identify properties that should be prioritized for code enforcement purposes. We have also been working to complete a draft Certificate of Compliance Program to present to the City Council.

Graffiti Task Force – He is in the process of organizing a subcommittee made up of some NICE committee members and other staff to develop a plan to address graffiti around the City. We will first address how we are going to address graffiti removal from City property, and will then work with code enforcement and community partners to address graffiti on private property.

Demolition RFP – He is working with Planning and Development Director Nancy Merrill to complete the RFP for demolition of the buildings at 111 and 119 Main Street. We have also had discussions with a local contractor about ways to minimize costs if we have multiple buildings to demolish.

- **Pleasant Street** – As of Wednesday August 4, 2021, the temporary water line along Pleasant Street has been constructed, pressure tested, and chlorinated. B.U.R. Construction is currently flushing the line and will be testing to make sure the water line is free of any contamination. Over the next week or so, they will transition each building from the City's water line to the temporary line in preparation for the sewer and water line replacements. After the buildings are hooked up to temporary water, the next stage of construction will be replacement of the sewer line which will start where Main Street meets Opera House Square and continue up Pleasant Street.

He has passed along the concerns of the merge from two lanes to one lane along Broad Street to the on-site engineer, who will be watching the area and helping to determine if any changes need to be made.

- **Claremont Fire Station Vaccination Clinic** - On August 2, 2021, the Claremont Fire Department hosted a COVID 19 Vaccination Clinic from 10am – 1pm. The clinic was well advertised both on social media and using the department's electronic message boards. With assistance of Fire Department personnel, members of Golden Cross Ambulance and Sullivan County Public Health Network, twelve persons were given vaccinations to provide protection against COVID-19. A special thanks goes out to Fire Captain Mike Zombeck and Golden Cross Paramedic Jeff Morin for administering the vaccines. Because of the exceptional turnout, the Fire Department is working with Sullivan County Public Health Network to host another clinic in the near future.

COVID-19 Update

- **COVID-19 Update** – New Hampshire and Claremont have seen increases in COVID-19 rates. Claremont currently has 5 active cases. The Delta Variant now makes up over 40% of the cases in New England, and the uptick in cases in NH is being attributed to the Delta Variant as well. Dr. Chan, the State of New Hampshire Epidemiologist, stated that overall New Hampshire's cases remain relatively low, but he expects the Delta Variant to be responsible for a more significant peak soon. Experts recommend that the best way to protect yourself from the Delta Variant is to get the COVID-19 vaccination, which is still over 90% effective against this variant. The City will continue to monitor COVID-19 cases in our area. The City also encourages residents to get vaccinated and to wear masks in accordance with CDC guidelines:
 - **The City will host a vaccination clinic at the Claremont Savings Bank Community Center on August 31, 2021 from 10:00 AM – 1:00 PM.**

As of today, there are 1-4 cases in Claremont.

A vaccination van will be at Runnings with the mobile food truck.

The City has hired two new police officers, Officer Hayley Cummings and Officer Steven Nicks. They will be testing in order to start the Academy this month. The Police Department continues its recruitment process.

ARPA funds of \$676,923.256 are on the way.

He congratulated Captain Mike Zombeck for receiving the VFW 808 Responder of the Year Award.

Councilor Girard asked about the CSBCC budget revenues going down from May to June and was given an explanation by Ms. Richmond.

Councilor Contois congratulated Fire Chief Bryan Burr on the quick response of the Fire Department to the Tumble Inn Diner, and about the use of a Fire Department boat in Newport during their flood. He was happy to see that the Police Department has hired a young woman. He thanked the Police Department for the National Night Out event.

Councilor Koloski asked, in regard to Mayor Lovett's email, when the Council will receive an update on the Parking Garage. He asked for a camera update from a request he made on June 1 of last year. He wants to know what cameras are functioning in Claremont. Regarding Pleasant Street, he was assured there would be something in place to monitor the new street. He said Red River put money to increase cameras in the Garage. Mayor Lovett said this will go on the September 8 Council agenda.

Mayor Lovett reported some highlights from the Department Reports including that she is hearing good things about the partnership between the City and the SAU 6 regarding the 6-week summer program.

Councilor Koloski mentioned the City jetter being used in another community during a flood. Mr. Morris said the City sent the jetter and 2 people to Washington. He'll forward a copy of the letter to the Council that was received thanking Claremont.

APPOINTMENT TO BOARDS AND COMMITTEES

Frances J. Tolles Home Trustees

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to re-appoint Claire Dole to seat 1 of the Frances J. Tolles Home Trustees.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Parks and Recreation Commission

A motion was made by Councilor Matteau and seconded by Councilor Stone to appoint Melissa Richmond to Alternate Seat 4 – At Large of the Parks and Recreation Commission.

Roll call vote:
O’Hearne - yes
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

CITIZEN’S FORUM

Walt Stapleton, Ward 3, asked a clarifying question and received an answer about the deletion from the agenda.

OLD BUSINESS

ARPA Funds Discussion

Mr. Morris said the City will received \$676,923.27 this year and the same again next year. we do not have to have a plan before the end of the month. He would like to brainstorm with the Council to see what direction the Council wants to go. Paving projects are not eligible. By using revenue loss, we can put money toward paving. What is not normally eligible, but is a high priority for the City is facility repairs: multiple roofs on the City Hall complex that need to be updated, 2 elevators in this building need to be updated (parts are becoming hard to find) quote was for \$269,000 with add-ons to modernize and upgrade will take it to \$350,000. That is if we move forward with the revenue loss funds. A few items on the CIP (Capital Improvements Plan) may be able to be put into the ARPA formula. A mini split heating and cooling system for Council Chambers is estimated at \$4,000. However, a forced air unit that covers the bottom floor of City Hall, which would give better air ventilation would qualify for ARPA funds. Also,

we could do something similar with the failing heating system (forced hot water system) at the Visitors Center. The replacement estimate is approximately \$100,000. Qualifying items are water, sewer, storm water, infrastructure, and broadband expansion.

Councilor Koloski said he is not comfortable claiming revenue loss and using the money for items not on the list (i.e. the elevators). He would rather follow the guidelines and go after air filtration, etc.

Mayor Lovett said the ARPA funds are separate from the \$1 trillion funds. She would like to see the ARPA funds used for things not in other funding packages. She talked about the Council Goals and developing affordable housing, improving park space, and the failing tennis courts at Monadnock Park. She talked about partnering with the school. The last estimate she heard was about \$300,000 for the tennis courts. Mr. Morris said if that is the direction the Council wants to go, he can follow up. If not, there are economic development funds coming out through ARPA, and another fund that is specifically for outdoor recreation. He has spoken to Parks and Recreation Director Mark Brislin to follow that.

Councilor Demars said the school is talking about playground upgrades. He talked about the City merging with the School to work together and not overlap. Because CSBCC membership numbers are down, he asked if ARPA funds could help there.

Councilor Girard talked about an air handling system to help protect employees. He talked about the tennis courts, water pad, pickle ball, broadband infrastructure. Mayor Lovett said broadband is in the infrastructure bill.

Mr. Morris said the money coming out of the transportation bill is mostly competitive type grants. The City will do research to try to get help writing grants to go after those funds.

Councilor Matteau asked if the money was factored into the budget. Mr. Morris said no. There was some revenue loss included. Regarding sewer and water enterprise funds, Mr. Morris doesn't think there will be an effect. They can be reviewed next year to see if rate increases will be needed. Councilor Matteau was in favor of: Public Health – assisting with mental health, and substance abuse; splash pad, and dog park.

Regarding mental health and substance abuse, Mr. Morris said the City would have to partner with a facility to create a program to use those funds.

Councilor Koloski's comments: Negative Economic Impacts – Currently, there are programs available for food assistance, rent, mortgage, utilities (Welfare expenses); job training – employers are ready to train; loans or grants for small businesses are available; supporting child care – he didn't have enough information; in favor of improving public outreach for meetings.

Mayor Lovett's comments: If the infrastructure bill passes, Claremont needs to look at Charlestown Road drainage; source water protection - Whitewater water protection; trail maintenance – make more trails more resilient.

Councilor Contois' comments: can't make any decision on infrastructure before knowing the outcome of the infrastructure bill; acknowledged City Hall roofs, and failing heating system(s) at the Visitors Center need attention.

Councilor Koloski talked about the need to put the full amount of funds into the Claremont Savings Bank Community Center Reserve. Mr. Morris said he believes this would fall under the revenue loss portion of ARPA. He said he will take the information and then come back to Council with some possible plans.

Ordinance 589 Police Commission – Second Reading – Public Hearing

The City of Claremont's Police Commission is a unique creature of statute in that its origin arises out of a special act of the State Legislature rather than, the City's Charter or RSA 105-C. Consequently, this special act of the Legislature controls the various aspects of the Claremont Police Commission's creation and operation as well as preempts most local regulation of this particular political body of the City. As a result, the provisions of Chapter 2, Article II, Division 10 of the City's Code serve as a recitation of said special act of the Legislature. Just recently, the State Legislature, once again, amended this special act in changing the appointment authority of the Commissioners of this body from the City Manager to that of the City Council.

The City's effort with this amendment is to recognize and incorporate, within the City's Code, this statutory change that is required of the City concerning the appointment authority for the Claremont Police Commission. This change is requested by the City Manager.

Councilor O'Hearne noted on the Explanation of Proposed Action that this was a request of the Council, not the City Manager.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to adopt Ordinance 589 Police Commission.

Councilor O'Hearne read the ordinance into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Ordinance 590 Alcoholic Beverages – Second Reading – Public Hearing

The purpose of this proposed change is to amend this particular section of the City's Code in order to remove the limitation of vending and/or serving of food and drink, in any City park, to only nonprofit organizations. The new language would allow any member of the public, regardless of their association or not with a nonprofit association, to pursue permission with the City to allow the sale or service of food/drink at these sites. In addition, the amendment extends the location for the sale or service of beer and wine to within a 200-foot radius of the lodge located at the Arrowhead Recreational Area.

The City's effort with this amendment is to merely increase the ability of the general public to have food/drink service at these public areas and to increase the area in which beer/wine service is allowed in the vicinity of the Arrowhead Recreational Area lodge in order to facilitate more options for the public utilizing this building. This change is requested by the City Manager.

A motion was made by Councilor Girard and seconded by Councilor Matteau to adopt Ordinance 590 Alcoholic Beverages.

Councilor Girard read the ordinance into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:
O'Hearne - yes
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

NEW BUSINESS

Restoration of Merged Land Parcels, Map 135-10

Planning and Development Director Nancy Merrill said that it was not uncommon for cities and towns to involuntarily merge lots.

Norm St. Aubin, Ward 3, said he bought one farm in 1958 and the other farm in 1967. The City merged them, but they should never have been put together. He wants to put the farm that was purchased in 1967 into his name. He said he has a deed to both and he needs them separated.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council approves the restoration of Tax Map 135 Lot 10 to two lots (Map 135 Lots 9 and 10) as requested by the property owner under RSA 674:39-aa because we find that the City involuntarily merged the lots prior to 2010 and that no owner has voluntarily merged them.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Station Host Association Request for Funds Discussion

The Station Host Association of Claremont had submitted a request for funding to the City Manager. The City Manager was proposing to budget \$2,000 a year to cover the cost of the portable toilet at the Amtrak station, with a couple hundred dollars extra to cover any increased costs or to purchase needed equipment. The money is not budgeted, so it would have to come from fund balance.

Walt Stapleton, Ward 3 resident and Station Host Association of Claremont NH Secretary, gave a brief description of what the Station Hosts do. They started in 2017 and have been doing activity since 2018. They meet the Vermonter trains, greet passengers and direct them to food and attractions. The Station Hosts have printed timetables for the Vermonter; they explain how to buy tickets and how to make train connections. There are about 15 active train hosts, and another dozen or so associates. They are all volunteers and are trained by Amtrak. They receive no payments. They have furnished various items/supplies out of their own pockets. The latest expense is the portable toilet that was put in at the station for the July 19 return of the Vermonter. Mr. Stapleton said that benches are needed for people who are waiting for the train(s).

Mayor Lovett said that she has been the president of the Station Host Association of Claremont NH and that she does not receive any benefit.

Mr. Morris was proposing to add a transportation line item to the Planning & Development Department budget for this funding and for the funding that is given to Southwestern Community Services for the bus support.

Councilor Koloski suggested reactivating the Amtrak Ad Hoc Committee and to adjust the membership numbers. He suggested using the Claremont 250th Committee as a model for fundraising. Mayor Lovett said the Station Host Association is based on the Amtrak model to greet riders on the train and to help them.

Mr. Stapleton said they have applied for and been issued a Trade Name: Station Host Association of Claremont NH. He said they are not looking for an allowance, but to just pass on invoices to the City for approved expenses.

Mayor Lovett talked about the Amtrak Ad Hoc Committee and that the original goal was to increase ridership, which was less than 1,200 a year at that time. She said it would be good for Claremont to recognize the value of the service. It connects NH with all major metropolitan areas from NH to DC.

Mr. Stapleton said in 2019, ridership was about 2,400 and once the count reaches 4,000 on and offs, they can get improvements through Amtrak.

Mr. Morris said he had recommended \$2,000 (\$1,800 portable toilet and \$200 extra), however he suggested moving to \$2,500.

In addition to the benches, Mr. Stapleton talked about the need for a ceramic heater for the pavilion, and a plastic wind curtain.

Councilor Stone supports fundraising.

Councilor Koloski would like to reinstate the Amtrak Ad Hoc Committee instead of giving this to a department. That would allow fundraising. He thinks it is important to have a standing committee.

Mr. Stapleton said he would like to submit requests to the City for needed items and then the City makes the purchases.

Councilors supported this. Mayor Lovett asked Mr. Morris to map out the options and if it requires a Council vote, then do that. Councilors agreed to the \$2,500.

Councilor Koloski said he is not in favor of funding the money through a department.

Mr. Stapleton said the Station Hosts have no interest in becoming a limited liability company, or a 501(c)3, so partnering, as discussed, is what they are interested in.

Mayor Lovett said the Station Hosts meet the train southbound & northbound 7 days a week.

Ordinance 591 Rescind Weapons in Public Buildings – First Reading

The purpose of this proposed change is to strike this particular section of the City's Code, in its entirety, in recognition of the preemption of New Hampshire Revised Statute Annotated §159:26 over the authority of City regulation concerning the use and possession of firearms by members of the public. The City of Claremont is a political subdivision of the State of New Hampshire from which the State Legislature possesses the authority to exert sole control and regulation of any matter that it chooses to take complete jurisdiction over. In this case, the State Legislature enacted a law that provides same with the only authority (aside from Federal law) to implement regulation concerning firearms while, expressly restricting the ability of municipalities to adopt ordinances that address the use and possession of firearms (even when such occurs on or in City-owned property).

The City's effort with this amendment is to merely eliminate municipal regulation that directly conflicts with and which is preempted by State law. This change is requested by the City Manager.

Councilor Stone said the State passed legislation allowing weapons in public buildings and that currently Claremont is not in compliance with state law.

There was a discussion about the purpose of the Policy Committee. Mayor Lovett said the founding purpose was to carry out the requirement of the City Charter, which is to review ordinances on the fifth anniversary of the enactment of those ordinances. There are some ordinances dating from the 1940s that haven't been reviewed. The Policy Committee has asked the Council for guidance, but without the guidance, the first order of business is to update those policies that are in violation of state law.

Councilor Koloski said items should come to the Council before being sent to legal for review.

Councilor Stone said that as Chair of the Policy Committee, he is very careful which ones go to Council before going to legal. There was nothing Council could change; this is state law.

Councilor Koloski said there were no minutes from the Policy Committee attached to this ordinance and none were found online. Councilor Stone said that the minutes were sent to the City Manager's office today.

A motion was made by Councilor Matteau and seconded by Councilor Girard to adopt Ordinance 591 Rescind Weapons in Public Buildings on first reading.

Councilor Matteau read the Explanation of Proposed Action into the record.

Mayor Lovett said the request was from the Policy Committee. Mr. Morris said because he had sent this to the attorney, it shows up as this change is requested by the City Manager. He will check with the attorney regarding making that change.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - no

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-2.

Property Maintenance Code Discussion

Withdrawn

Overview of the Trust Funds

Ms. Richmond said a majority of the trust funds were created prior to 1962. She showed a PowerPoint City of Claremont Trust Funds. Clerk to Trustees is Vicki Corliss.

Regarding advisors, Ms. Richmond said it is her understanding that it is very rare to change advisors. Regarding the donations for the dog park, she said it is not a trust fund, but it is deposited into a pool account and the only way to change the purpose of the account is to contact every donor and get their permission, which would be difficult, because a lot of the donations were made in cash. Regarding utilizing the trust fund monies, the document that created the trust fund specifies what transpires with that money.

Councilor Koloski thinks it is important to have a way of knowing who makes cash donations.

Councilor Contois said the reason he asked for this to be on the agenda was that when he went to a Tolles Home meeting, they discussed bonuses for the Tolles Home employees, but that had not come before the Council. He asked about the perpetual care fund. Ms. Richmond said the City is the caretaker of these funds. This is a trust document that is irrevocable. There is over \$30 million in the trust. The donors have given money to the City for very specific purposes. Regarding perpetual care, she said the revenue comes to the City and it is a revenue line in the budget. That revenue helps offset the costs of the cemeteries.

Authorization to Repair Class VI Portion of Cat Hole Road

Mr. Morris said last winter Eversource did some work on the transmission line on Cat Hole Road. Assistant Public Works Director Jeremy Clay let them know that during the recent storms a culvert washed out. If this authorization is approved, Eversource will repair the culvert with the oversight of Public Works.

Mr. Clay confirmed there would be no costs to the City for this repair.

Matt Flanders, Eversource, apologized and said that Eversource was ready to repair the culvert the right way.

A motion was made by Councilor Matteau and seconded by Councilor O'Hearne that the Claremont City Council hereby authorizes Eversource to repair damages associated with their transmission line work on the Class VI portion of Cat Hole Road and to authorize the city manager, or his designees, to take such actions and execute all documents as may be necessary.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

COMMITTEE REPORTS

Councilor Stone said the Policy Committee would meet on August 17.

FUTURE AGENDA ITEMS AND DIRECTIVES

Council agreed to meet in a Non-Public Session for Personnel on Tuesday, August 31, 6:30 p.m. in Council Chambers.

Councilor Koloski said that tonight, Council had heard complaints about the audio in Council Chambers. He had talked about sonic headsets. Mr. Morris will discuss this with the IT office.

Councilor Koloski asked about board/committee minutes that are not on the website. Mr. Morris will provide an update.

Councilor Girard said he looked online, but didn't see minutes for the Energy Advisory Committee, Police Commission, and Policy Committee (being worked on).

Councilor Girard asked about the discussions that were had during the budget process regarding putting the Transfer Station, IT, etc. on future agendas. Mayor Lovett confirmed they will go on future agendas.

Councilor Koloski said that he had asked for an update about Councilors' emails being published to the website. If someone requests a large number of emails and then supplies their own flash drive, there is no charge to the requester. If the procedure is to send the emails to legal counsel for review, and there are multiple requests, the cost to the City could be quite high. He would like to see a process where they are reviewed and then for those that can be, uploaded to the website.

Councilor Matteau thinks that each of the emails received/sent to the Council should have a category attached to it and vetted whether or not they are public.

Mr. Morris said to be able to do that, we would have to run all the emails through our attorney, because the Supreme Court has now put a balancing test on what is public and what is not. He would not feel comfortable categorizing emails for public release.

Councilor O'Hearne said Councilors should have an email through the City, not through Gmail, and that would make it easier to get copies in order answer citizen requests for emails.

There was a brief discussion about emails for 91-A requests. Councilor Koloski said he wants an update on a procedure for responding to 91-A requests.

Councilor O'Hearne said because of the legislative, and ordinance, change to the Police Commission, he thinks it would be wise for the current Police Commission members to reapply for their seats. Mr. Morris said he will look into that.

Councilor Stone believes that should be an agenda item to discuss the terms of the Commission member seats.

Councilor Koloski asked if the Police Commissioners would automatically vacate their seats.

Mr. Morris said he will talk to legal counsel.

Mr. Morris listed the action items:

- Update on the functioning cameras around the City
- Work on support of the Station Hosts program

- Check with legal counsel about the “requested by City Manager” on the Explanation of Proposed Action for ordinances
- Non-Public on August 31, 6:30 p.m.
- Assistive hearing devices for Council meetings
- Minutes update (EAC, Police Commission, and Policy Committee)
- Transfer Station Committee on agenda in September
- IT office and other departments update on the September agenda
- Update on procedure for emails for 91-A requests
- Police Commission request to legal counsel

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:16 p.m., a motion was made by Councilor Matteau and seconded by Councilor O’Hearne to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council